

Moving to NY

Exchange out-of-state driver license

If you move to New York State and become a resident 1, you must get a New York State driver license within 30 days.

Learn how to exchange your out-of-state driver license [1].

I am studying in New York State. Do I need a New York State driver license?

Students from other states, countries or nations who attend school in New York State are normally not considered residents of New York State, so they don't need to exchange their current driver license.

Normally, you can't have a NY State driver license and a driver license from another state at the same time, but there are exceptions. However, it is a violation of Federal law to hold more than one commercial driver license (CDL).

Register a vehicle from another state in New York

The registration requirements are generally the same as to register and title vehicle [2] in New York. However there are a few exceptions for out-of-state vehicles [3], and imported vehicles [4].

What does 'TEMPORARY VISITOR' mean?

A Temporary Visitor is defined as anyone who is not immigrating to or not residing (living) in the United States. These visitors have US Department of Homeland Security (DHS) documentation that supports their legal status in this country.

If you have DHS documents that identify you as a Temporary Visitor, your New York State driver license, permit or non-driver ID card will have

- 'TEMPORARY VISITOR' on it, and
- the expiration date from your DHS document

Please note that your DMV document does not expire on the Temporary Visitor expiration date, nor will your privilege to drive in New York.

You do not need to be a US Citizen to get a New York driver license, permit or non-driver ID card

However, you must have US Department of Homeland Security (DHS) documentation that supports your legal status in this country. The expiration date from your DHS document is added to your New York State permit, driver license or non-driver ID card. Learn more about how to get a

- driver license \[5\]
- learner permit \[6\]
- non-driver ID card \[7\]

If your temporary visitor status gets extended, you must bring to a DMV office

- a completed Application for Permit, Driver License or Non-Driver ID Card (pdf) \[8\] (MV-44)
- your updated paperwork from the DHS (your documents must be valid, current and verifiable)
- 6 points of identification \[9\]

If I have a driver license from another country and I have a NY State learner permit, can I drive without a supervising driver?

Yes. Your valid foreign driver license allows you to drive without a supervising driver. You can drive on any street, road, highway, bridge, or tunnel, except in a DMV road test area.

If your driver license is printed in any language except English, you must bring an International Driving Permit or a certified translation of your driver license to the road test. The translation must be certified by a consulate, the US Department of State, or another official agency. The translation must include

- your name
- your date of birth
- the expiration date of your foreign driver license
- a list of the types of vehicles that your foreign driver license allows you to drive

If you have a NY State learner permit, and you do not have a valid foreign driver license, NY State law requires a supervising driver to ride with you. The supervising driver must be age 21 or over and must have a valid driver license to operate the vehicle that you drive.

- 1. Definition of Resident per Section 250 (5) of the NY State Vehicle and Traffic Law: "As used in this section, the term 'resident' shall mean domiciliary, that is, one who lives in this state with the intention of making it a fixed and permanent abode. It shall be presumptive evidence that a person who maintains a place of abode in this state for a period of at least ninety days is a resident of this state." To live in a house, a home, an apartment, a room or other similar place in NY State for 90 days is considered "presumptive evidence" that you are a resident of New York State. A police officer can use this as evidence to issue a traffic ticket if you drive in New York State without a NY State driver license or vehicle registration. A judge considers the law and the evidence of your intent and decides if you are a resident of New York State. If you pay taxes or your children attend school in another state, a judge considers these facts to decide if your intent is to make NY State a "fixed and permanent" residence. According to this law, students from other states or from other nations who attend school in New York State are usually not considered residents of NY State. DMV does not decide if you are a resident of New York State, if you must get a NY State driver license, or if you must register your vehicle in New York State.